

24TRCV02710 24TRCV02710

County: los-angeles

Division: Civil Law and Motion

Department: P

Hearing date: 2026-09-15

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Case Number: 24TRCV02710 Hearing Date: September 15, 2026 Dept: P

Motion for Summary Adjudication

Moving Party: Defendant The Hertz Corporation

Responding Party: Plaintiff Michael Baccus-Williams

RULING

The court considered the moving papers and opposition. Hertz's Motion for Summary Adjudication is DENIED.

PROCEDURAL BACKGROUND

On August 14, 2024, Plaintiff Michael Baccus-Williams ("Plaintiff") filed a complaint against Defendants John Doe, The Hertz Corporation ("Hertz"), and DOES 1 through 50, inclusive, alleging two causes of action for: (1) Motor Vehicle; and (2) General Negligence.

On April 11, 2025, Plaintiff filed an amendment to his complaint identifying Defendant John Doe as Defendant Eric Gary Crawford. On February 3, 2026, Plaintiff filed an amendment to his complaint clarifying that Defendant Gary Allen Crawford was erroneously identified as Eric Gary Crawford.

On April 18, 2025, Hertz filed a Motion for Summary Adjudication regarding its third affirmative defense, which the court granted on July 17, 2025.

On June 24, 2026, Hertz filed the instant Motion for Summary Adjudication. On August 26, 2026, Plaintiff filed an opposition.

FACTUAL BACKGROUND

This action arises from a two-vehicle collision that occurred on February 26, 2023 in a Hertz parking lot, involving a Hertz employee and Plaintiff. (UMF No. 1.) Plaintiff alleges that he was in his vehicle when the Hertz vehicle struck Plaintiff's vehicle. (UMF No. 1.) On February 25, 2026, Hertz conducted the deposition of Plaintiff. (UMF No. 3.) During his deposition, Plaintiff testified that he sustained injuries to his neck, right shoulder, "right trap" area, and lower back due to the accident,

and described experiencing stiffness, soreness, and “whiplash”-type symptoms in the weeks following the collision. (UMF No. 4; Def. Appendix Exh. C, 122:7-19; 123:11-16.) Plaintiff testified that over the course of approximately three years, he underwent treatment including chiropractic care, physical therapy, and pain management injections. (UMF No. 4; Def. Appendix Exh. C, 162:9-14; 160:15-24.) Plaintiff testified that on January 5, 2026, approximately one month prior to his deposition, Plaintiff underwent lower back surgery. (UMF No. 4; Def. Appendix Exh. C, 146:22-147:1.)

During his deposition, Plaintiff stated that his headaches have subsided. (UMF Nos. 5-6; Def. Appendix Exh. C, 133:21-23; 135:4-6.) Plaintiff further testified that he continues to experience some tightness and soreness in his neck area. (Def. Appendix Exh. C, 126:13-14.) Plaintiff testified that his lower back condition has improved following his surgery in January 2026 but he still experiences soreness. (UMF No. 9; Def. Appendix Exh. C, 175:15-18.) Plaintiff further testified that he did not know whether he anticipated undergoing additional surgery. (UMF No. 10; Def. Appendix Exh. C, 177:3-13.) Plaintiff testified that his last injection to his shoulder occurred in early 2025. (UMF No. 13; Def. Appendix Exh. C, 161:4-7.) Plaintiff also testified that he was seeing a physical therapist for post-surgical rehabilitation following his January 2026 surgery. (UMF No. 15; Def. Appendix Exh. C, 161:21-162:4.)

LEGAL STANDARD

The function of a motion for summary judgment or adjudication is to allow a determination as to whether an opposing party cannot show evidentiary support for a pleading or claim and to enable an order of summary dismissal without the need for trial. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 843.) “[T]he party moving for summary judgment bears the burden of persuasion that there is no triable issue of material fact and that he is entitled to judgment as a matter of law[.] There is a triable issue of material fact if, and only if, the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof.” (*Id.* at 850.) “[T]he party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact; if he carries his burden of production, he causes a shift, and the opposing party is then subjected to a burden of production of his own to make a prima facie showing of the existence of a triable issue of material fact.” (*Ibid.*)

“On a summary judgment motion, the court must therefore consider what inferences favoring the opposing party a factfinder could reasonably draw from the evidence. While viewing the evidence in this manner, the court must bear in mind that its primary function is to identify issues rather than to determine issues. Only when the inferences are indisputable may the court decide the issues as a matter of law. If the evidence is in conflict, the factual issues must be resolved by trial.” (*Binder v. Aetna Life Ins. Co.* (1999) 75 Cal.App.4th 832, 839 [cleaned up].) Further, “the trial court may not weigh the evidence in the manner of a factfinder to determine whose version is more likely true. Nor may the trial court grant summary judgment based on the court’s evaluation of credibility.” (*Id.* at 840 [cleaned up]; see also *Weiss v. People ex rel. Department of Transportation* (2020) 9 Cal.5th 840, 864 [“Courts deciding motions for summary judgment or summary adjudication may not weigh the evidence but must instead view it in the light most favorable to the opposing party and draw all reasonable inferences in favor of that party”].)

A party may move for summary adjudication as to one or more causes of action, affirmative defenses, claims for damages, or issues of duty if that party contends that there is no merit to the cause of action, defense, or claim for damages, or if the party contends that there is no duty owed. (See Code Civ. Proc. Section 437c(f)(1).) “A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty.” (*Ibid.*) A cause of action has no merit if: (1) one or more elements of the cause of action cannot be separately established, even if that element is separately pleaded, or (2) a defendant establishes an affirmative defense to that cause of action. (See Code Civ. Proc. Section 437c(n); *Union Bank v. Superior Court* (1995) 31 Cal.App.4th 573, 583.) Once the defendant has shown that a cause of action has no merit, the burden shifts to the plaintiff to show that a triable issue of material fact exists as to that cause of action. (See Code Civ. Proc. Section 437c(o)(2); *Union Bank v. Superior Court*, *supra*, 31 Cal.App.4th at 583.)

DISCUSSION

Moving Party’s Argument

Hertz moves for summary adjudication as to the issue of damages for Plaintiff's future treatment on the grounds that Plaintiff's deposition testimony establishes that there is no triable issue of material fact as to Plaintiff's need for future medical care. Hertz argues that Plaintiff has provided clear and unequivocal testimony that he does not anticipate the need for future medical treatment beyond follow-up care, and thus Plaintiff cannot create a triable issue of material fact by submitting contradictory declarations or expert opinions. Hertz argues that Plaintiff's testimony indicates that he cannot meet the burden of establishing that future medical care is reasonably certain and further argues that policy considerations support granting the instant motion by preventing speculative damage awards.

Opposing Party's Argument

Plaintiff argues that Hertz has failed to meet its burden because Plaintiff did not make clear and unequivocal admissions that he does not anticipate future medical care and instead testified that he did not know whether he would require further treatment or surgery. Plaintiff further argues that subsequent medical developments indicate that future medical treatment may be required, as Plaintiff was recommended as a candidate for additional lumbar spine treatment. Plaintiff further argues that Hertz has not affirmatively demonstrated that Plaintiff cannot prove future treatment damages because Hertz has failed to submit any competent medical evidence establishing that Plaintiff will not require future medical treatment. Finally, Plaintiff argues that Hertz's policy-based arguments fail.

Evidentiary Objections

Plaintiff's evidentiary objections Nos. 1-12 to the deposition transcript of Plaintiff are OVERRULED.

Merits of the Motion

A. Procedural Issues

Code of Civil Procedure Section 437c(f)(1) provides that a party may move for summary adjudication as to "one or more claims for damages," if the moving party argues "that there is no merit to a claim for damages, as specified in Section 3294 of the Civil Code...A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty." (Code Civ. Proc. Section 437c(f)(1).)

"Summary adjudication motions are restricted to an entire cause of action, an affirmative defense, a claim for punitive damages, or an issue of duty." (Travelers Indemnity Co. v. Maryland Casualty Co. (1996) 41 Cal.App.1538, 1542 [disagreed with on different grounds in by Sentry Select Ins. Co. v. Fidelity & Guaranty Ins. Co. (2009) 46 Cal.4th 204].)

Code of Civil Procedure Section 437c(t) provides: "Notwithstanding subdivision (f), a party may move for summary adjudication of a legal issue or a claim for damages other than punitive damages that does not completely dispose of a cause of action, affirmative defense, or issue of duty pursuant to this subdivision." (Code Civ. Proc. Section 437c(t).) However, subdivision (t) requires that before filing a motion pursuant to subdivision (t), the parties must submit a joint stipulation stating the issues to be adjudicated, and each stipulating party must submit a declaration stating that the motion will "further the interest of judicial economy by decreasing trial time or significantly increasing the likelihood of settlement." (Code Civ. Proc. Section 437c(t).)

Here, the notice of the instant motion states that Hertz moves for summary adjudication "as to the issue of damages for Plaintiff's future treatment being precluded." (Mot. 2:10-11.) As Hertz is moving for summary adjudication of a claim for damages other than punitive damages, the court finds that the parties were required to submit a joint stipulation along with supporting declarations as required by Code of Civil Procedure Section 437c(t).)

No such stipulation or supporting declarations were filed here prior to Hertz filing the instant motion, and thus the court concludes that the instant motion is procedurally improper.

Accordingly, Hertz's Motion for Summary Adjudication is procedurally improper.

However, the court will continue to discuss the merits of the instant motion.

B. Damages: Future Medical Expenses

Civil Code Section 3283 provides that "[d]amages may be awarded, in a judicial proceeding, for detriment resulting after the commencement thereof, or certain to result in the future." (Civ. Code. Section 3283.) "However, the 'requirement of certainty...cannot be strictly applied where prospective damages are sought, because probabilities are really the basis for the award.'" (Behr v. Redmond (2011) 193 Cal.App.4th 517, 533, quoting 6 Witkin, Summary of Cal. Law (10th ed. 2005) Torts, Section 1552, p. 1027.) "Still, 'there must be evidence to show such a degree of probability of their occurring as amounts to a reasonable certainty that they will result from the original injury. [Citations.]'" (Ibid., quoting Bellman v. San Francisco H.S. Dist. (1938) 11 Cal.2d 576, 588.)

Hertz argues that Plaintiff's deposition testimony establishes that Plaintiff does not anticipate future medical care beyond follow-up appointments. In support, Hertz points to an excerpt of Plaintiff's deposition transcript in which Plaintiff testified that he "can't say" whether he personally anticipates or expects to undergo additional surgery and stated that "it depends on what's recommended to [Plaintiff]." (Def. Appendix Exh. C, 177:3-8.) Plaintiff further testified that at the time of his deposition, he did not have plans for a surgery in the future but had plans to "just follow-up with doctor's recommendations." (Def. Appendix Exh. C, 177:14-22.) Hertz also identifies an excerpt from Plaintiff's deposition transcript in which he testified that his lower back "feels better than before the surgery," but Plaintiff also testified that he still experiences soreness from the surgery and is "still recovering," such that it is "hard for [Plaintiff] to say, you know, exactly what [his] outcome is going to be permanently." (Def. Appendix Exh. C, 175:13-21.)

Hertz also points to an excerpt from Plaintiff's deposition transcript in which Plaintiff testified that his headaches have "subsided...significantly." (Def. Appendix Exh. C, 135:4-6.) Plaintiff also testified that he can use his shoulder and turn his head but stated that he believes he will always have "some inflammation or tension or tightness," and testified that "it's not gone away." (Def. Appendix Exh. C, 134:9-15.) Plaintiff additionally testified that he still experiences tightness and soreness in his neck but clarified that it "can be from a variety of things." (Def. Appendix Exh. C, 126:13-23.) Plaintiff also testified that at the time of his deposition, he was still going to physical therapy. (Def. Appendix Exh. C, 161:21-162:4.)

The court finds that Hertz's evidence is insufficient to enable Hertz to meet its initial burden of establishing that no triable issue of material fact exists as to whether Plaintiff will require future medical care. At most, Plaintiff has testified that he is unsure whether he will require additional surgical procedures and has testified that he continues receiving physical therapy treatment and continues to experience soreness, inflammation, tension, and tightness. Therefore, Moving Party's own evidence show that there will likely be some future medical treatment.

As Hertz has not established that there are no triable facts as to future damages, the burden does not shift to the Plaintiff.

Therefore, while the court has previously concluded that Hertz's present Motion for Summary Adjudication is procedurally improper, the court has also found that Hertz has failed to meet its burden.

Accordingly, Hertz's Motion for Summary Adjudication is DENIED.

CONCLUSION

Based on the foregoing, Hertz's Motion for Summary Adjudication is DENIED.

Moving party is ordered to give notice of ruling.